

Court No. - 21

Case :- WRIT - C No. - 6144 of 2024

Petitioner :- Kunwar Pal @ Vechelal

Respondent :- Madhyanchal Electricity Distribution Corporation Limited, Through Its Managing Director And 2 Others

Counsel for Petitioner :- Pankaj Satsangi

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. None present for the petitioner.
2. Shri Mukesh Kumar Singh, learned counsel for respondent-Corporation is present.
3. List as fresh on 06.03.2024.

Order Date :- 26.2.2024

Sazia

(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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1. It is not disputed that without there being any final assessment, the demand notice of recovery has been issued.
2. Connect with Writ C No.3458 of 2024 and list alongwith it on 01.04.2024 as fresh.
3. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned demand notice.

Order Date :- 6.3.2024

Jyotsana

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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1. The petitioner has challenged the recovery notice dated 23.06.2021 issued by respondent no.3 for recovery of electricity dues.

2. Sri Mukesh Kumar Singh, learned counsel for the respondent-Electricity Department, states that in respect of the electricity dues, the petitioner has availed the benefit of One Time Settlement. As regards the amount due in pursuance of assessment proceedings, the recovery has been withdrawn and that fresh order will be passed after hearing the petitioner.

3. Having regard to the aforesaid statement of learned counsel for the respondent-Electricity Department, we **dispose of** the instant petition with liberty to respondent-Electricity Department to pass a fresh assessment order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 1.4.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)